SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0009514

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER: CLERK: A. ANDRES

PLAINTIFF: SAEED GHAFOORI ET AL. vs. DEFENDANT: BANK OF AMERICA HOME LOANS ET AL.	

NATURE OF PROCEEDINGS: MOTION – OTHER: TO EXPUNGE LIS PENDENS

RULING

Defendants Bank of America Home Loans; Bank of America, N.A., Successor By Merger to Bank of America Home Loan Servicing, Bank of New York Mellon; CWALT, Inc.; and Mortgage Electronic Registration Systems, Inc. (collectively "Defendants") Motion for an Order Expunging the Lis Pendens recorded by plaintiffs Saeed (Paul) Ghafoori and Gissou Beykpour Ghafoori (collectively "Plaintiffs") against the real property commonly known as 11 Sky Mill Road, Mill Valley, California 94941 is hereby GRANTED.

REQUEST FOR JUDICIAL NOTICE

Defendants' Requests for Judicial Notice Nos. 1-8 are GRANTED. (Evid. Code, § 452, subds. (d), (h).)

DEFENDANTS' STATEMENT OF PROCEDURAL HISTORY

Defendants submit the following facts in support of their Motion: In November 2005, Plaintiffs obtained a loan in the amount of $2,555,000.00 from Countrywide Bank. (See RFJN, No. 1.) On July 5, 2012, an Assignment of Deed of Trust was recorded, showing that the Deed of Trust had been assigned to Bank of America, N.A. ("BANA"). (See RFJN, No. 2.) BANA currently owns and services the loan.

Plaintiffs fell behind on their mortgage obligations, and a Notice of Default was then recorded on December 5, 2016. (See RFJN, No. 3.) Rather than cure the default, Plaintiffs filed a lawsuit on February 14, 2017, claiming that the loan had been improperly securitized, although no securitization had occurred, and the facts showed that BANA owned the loan. Plaintiffs' Complaint named 16 defendants – the vast majority of which never had any interest in the loan – including the Defendants in this action. After dismissing a number of the defendants, Plaintiffs and Defendants mediated the prior lawsuit, culminating in a settlement agreement executed by

Plaintiffs on April 18, 2019. (See RFJN, Nos. 1, 8.) The settlement agreement stated that a Notice of Rescission of the Notice of Default would be recorded, and that Defendants would refrain from recording a new Notice of Default until August 1, 2019. (See RFJN, No. 1; Ex. A, ¶ 1(C).) Plaintiffs expressly agreed that such an instrument may be recorded on that date. (*Ibid*.) In the agreement, Plaintiffs also agreed that they would take no action to contest any foreclosure activities by Defendants following August 1, 2019. (*Id*., ¶ 1(D).)

A Notice of Rescissions of Notice of Default was recorded on May 2, 2019. (See RFJN, No. 4.) A subsequent Notice of Default was then recorded on September 5, 2019. (See RFJN, No. 5.)

In October 2019, Plaintiffs filed a lawsuit against Defendants, alleging that Defendants breached the terms of the settlement agreement by informing a prospective purchaser that the property was going into foreclosure, thereby jeopardizing Plaintiffs' agreement to sell the property. (See RFJN, No. 7.) On December 11 and 21, 2020, Plaintiffs sat for their respective depositions, during which each testified that they had no reason to believe that Defendants actually breached the settlement agreement. (Spann Decl., ¶¶ 5-7.) On April 16, 2024, Plaintiffs voluntarily dismissed the 2019 lawsuit without prejudice.

On October 2, 2023, while the 2019 lawsuit was pending, Plaintiff Saeed Ghafoori filed for Chapter 11 bankruptcy. (United States Bankruptcy Court, Northern District of California, case no. 3:23-bk-30665.) On February 22, 2024, the bankruptcy court granted BANA's motion for relief from the automatic stay. The following day, the bankruptcy court dismissed the bankruptcy on Plaintiff's motion.

On March 1, 2024, while the 2019 lawsuit was still pending, Plaintiffs filed a lawsuit against Defendants in the district court, and obtained a temporary restraining order. (United States District Court, Northern District of California, case no. 4:24-cv-1267.) Plaintiffs' 2024 complaint combined the allegations and causes of action from the 2017 and 2019 complaints, the latter which Plaintiffs already testified had no factual basis. On September 13, 2024, the court dismissed the 2024 lawsuit for lack of subject matter jurisdiction.

Four days after the 2024 lawsuit was dismissed, Plaintiff Saeed Ghafoori filed for Chapter 13 bankruptcy on September 17, 2024. (United States Bankruptcy Court, Northern District of California, case no 3:24-bk-30689.) On January 7, 2025, the bankruptcy court dismissed the bankruptcy on Plaintiff's motion.

On May 12, 2025, Plaintiffs filed a lawsuit against Defendants in state court, again alleging that Defendants breached the 2019 settlement agreement, and further alleging that BANA violated the California Homeowners' Bill of Rights. (Marin County Superior Court, Case No. CV0006202.) Plaintiffs immediately moved for a preliminary injunction, which the court denied on August 12, 2025. Shortly thereafter, on December 5, 2025, Plaintiffs filed an ex parte application for a TRO, which was nearly identical to the one filed in this lawsuit. (Spann Decl., ¶ 10.) The court denied Plaintiffs' request for a TRO. (*Id.*) On February 23, 2026, Plaintiffs voluntarily dismissed the 2025 lawsuit

On December 9, 2025, while the 2025 lawsuit was pending, Plaintiff Saeed Ghafoori again filed for Chapter 13 bankruptcy. (United States Bankruptcy Court, Northern District of California, case no. 3:25-bk-31001.) Soon thereafter, BANA filed for relief from the automatic stay, which the court granted on January 23, 2026. (Spann Dec., ¶ 11.) In its order, the bankruptcy court granted BANA in rem relief on the ground that "the filing of the bankruptcy petition was part of a scheme to hinder, delay, or defraud creditors that involved multiple bankruptcies affecting the property and the Court makes a finding that the Debtor was involved in this scheme." (*Id.*) On February 23, 2026, the bankruptcy court dismissed the bankruptcy on Plaintiff's motion.

On March 11, 2026, Plaintiffs filed a federal lawsuit, and immediately sought a temporary restraining order, which the court denied on March 16, 2026. (*Id.,* ¶ 13.) In their complaint, Plaintiffs asserted the same theory asserted in their application for a temporary restraining order which was filed – and denied – in state court, as well as allegations pertaining to an alleged breach of the 2019 settlement agreement – which Plaintiffs already testified have no factual basis. On May 6, 2026, Plaintiffs voluntarily dismissed the 2026 district court case. (*Id.,* ¶ 16.)

On March 23, 2026, Plaintiffs filed this lawsuit against Defendants in state court, asserting claims which they previously asserted in the 2026 district court matter. On May 15, 2026, this Court denied Plaintiffs' ex parte application for a temporary restraining order. Three days later, Plaintiffs recorded a lis pendens on the property. (RFJN No., 7.)

Immediately after this court denied Plaintiffs' application for a temporary restraining order, Plaintiffs filed a request for a preliminary injunction in the 9th Circuit. (U.S. Circuit Court of Appeals, 9th Circuit, Case No. 26-1671; Spann Decl., ¶ 15.) Plaintiffs' opening brief was due by April 16, 2026. Plaintiffs, however, failed to file the brief as required. On June 3, 2026, the 9th Circuit dismissed Plaintiffs' appeal.

Presently before the Court is Defendants' Motion to Expunge the lis pendens.

LEGAL STANDARD

A notice of pendency of action may be filed when a real property claim is alleged in an action. (Code Civ. Proc., §§ 405.1, 405.2.) A real property claim means the causes of action, if proven, would affect either: (a) title to or the right to possession of specific real property, or (b) the use of an easement identified in the pleading. (Code Civ. Proc., § 405.4.)

A party seeking to remove the notice has two options, either attack the pleading as failing to state a real property claim (Code Civ. Proc., § 405.31), or attack the real property claim as lacking evidentiary merit (Code Civ. Proc., § 405.32).

Under section 405.32, the Court must expunge a lis pendens "if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim." A motion to expunge on this ground "expressly concerns factual merit" of the plaintiff's real property claim. (Code Civ. Proc., § 405.32, Code cmt. ¶3.) Unlike a motion on the first ground, which involves only a demurrer-like review of the pleadings, section 405.32 "is intended … to require a judicial evaluation of the merits" of a plaintiff's real property claim. (*Id.*)

When questioning the evidentiary merit of a claim, the claimant who filed the lis pendens has the burden of proof. (Code Civ. Proc., § 405.30.) Thus, that claimant, in opposing the motion to expunge the lis pendens, must demonstrate the following: (1) the action affects title to or right of possession of the real property described in the notice; (2) in so far as the said notice is concerned, the party recording the notice has commenced the action for a proper purpose and in good faith; and (3) the probable validity of the real property claim by a preponderance of the evidence. (*Hunting World, Inc. v. Superior Court* (1994) 22 Cal.App.4th 67, 70; see also Code Civ. Proc., § 405.30, et seq.) Only admissible evidence is permitted on the motion. (*Burger v. Superior Court* (1984) 151 Cal.App.3d 1013, 1019.)

DISCUSSION

Defendants bring this Motion under California Rules of Court, rule 3.1200 et seq., and pursuant to California Code of Civil Procedure section 405.30, et seq., on the ground Plaintiffs have not demonstrated that he has a viable real property claim in this lawsuit, and that the lis pendens represents an improper cloud on title.

There is no question that several of Plaintiffs' asserted causes of action, if proven, would affect title to specific real property. The question is whether any of these causes of action are supported by evidentiary merit and whether Plaintiffs demonstrated the probable validity of the real property claims by a preponderance of the evidence.

This Court finds that they did not.

Each of Plaintiffs' real property causes of action rely on either the claim that Defendants' conduct violated California Civil Code section 2924f(e)(1) (by failing to postpone the sale by 45 days after delivery of a purchase agreement) or failure to timely provide payoff and reinstatement statements. The Court will address each in turn.

Plaintiffs Failed to Comply with California Civil Code section 2924f(e)(1)-(4) – No Postponement was Required

In support of its Motion, Defendants provide the following facts: On October 6, 2025, Plaintiffs sent Defendants' counsel a letter indicating that they had listed the property for sale, and demanding a 45-day postponement pursuant to California Civil Code section 2924f(e)(1). (Spann Dec., ¶ 8.) In light of the letter, BANA postponed the scheduled October 15, 2025 sale. (*Id.*) On the eve of the continued sale – set for December 1, 2025 – Plaintiffs sent Defendants' counsel a packet of documents which Plaintiffs claimed to be a purchase agreement wherein the property would be sold for $3,000,000, and demanding a further postponement. (See Plaintiffs' Application for a Temporary Restraining Order filed 5/14/26 ("TRO"), Ex. B.) However, the purported purchase agreement did not indicate that it was accepted by a designated escrow agent, but rather stated that Plaintiffs rejected the offer the same date that they purportedly entered into it. (*Id.*, ¶ 34.) Further, Defendants assert that the amount required to pay of BANA's loan by

December 10, 2025 – and excluding the other liens on the property – was $4,189,336.30. (Spann Decl., ¶ 8; Ex. D; Passilias Decl., ¶ 2.)

California Civil Code section 2924f(e)(1)-(4) provides:

> (1) With respect to residential real property containing no more than four dwelling units that is subject to a power of sale contained in any deed of trust or mortgage, a sale of the property under the power of sale shall not be conducted until the expiration of an additional 45 days following the scheduled date of sale pursuant to subdivision (a) or (c) of Section 2924g if the trustee receives, at least five business days before the scheduled date of sale, from the mortgagor or trustor, by certified mail with the United States Postal Service or by another overnight mail courier service with tracking information that confirms the recipient's signature and the date and time of receipt and delivery, a listing agreement with a California licensed real estate broker to be placed in a publicly available marketing platform for the sale of the property at least five business days before the scheduled date of sale. The provisions of this paragraph shall not be used to postpone the scheduled sale date more than once.
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> (2) If a scheduled date of sale is postponed pursuant to paragraph (1), the trustor's or mortgagor's right to reinstate the account shall be extended, calculated pursuant to subdivision (e) of Section 2924c based on the new scheduled date of sale.
>
> (3) If a scheduled date of sale has been postponed pursuant to paragraph (1) and the trustee receives, at least five business days before the scheduled date of sale, from the mortgagor or trustor, by certified mail with the United States Postal Service or by another overnight mail courier service with tracking information that confirms the recipient's signature and the date and time of receipt and delivery, a copy of a purchase agreement for the sale of the property at least five business days before the scheduled sale, the trustee shall postpone the scheduled date of sale to a date that is at least 45 days after the date on which the purchase agreement was received by the trustee. The provisions of this paragraph shall not be used to postpone the scheduled sale date more than once.
>
> (4) For purposes of this subdivision, "purchase agreement" means a bona fide and fully executed contract for the sale of the property that is subject to a power of sale with a purchase price amount equal to or greater than the amount of the unpaid balance of all obligations of record secured by the property that includes the name of the buyer, the sales price, the agreed closing date, and acceptance by the designated escrow agent.

Plaintiffs acknowledge in their Opposition that section 2924f requires that a bona fide purchase agreement be for "a purchase price equal or greater than the unpaid balance of all obligations of record secured by the property." (Oppo. p. 7:22-26.)

Here, the document cited to by Plaintiffs is deficient in a number of ways. It was not equal to or greater than the amount of the unpaid balance of all obligations or record, it was not "fully executed" having been marked as "not accepted," and no acceptance was marked by the designated escrow agent. (TRO, Ex. B; Spann Decl., ¶ 8; Ex. D; Passilias Decl., ¶ 2.)

For all of these reasons, the purchase agreement relied upon by Plaintiffs was insufficient to trigger the second postponement under Civil Code section 2924f(e)(3).

Because the provided purchase agreement was deficient, BANA refused Plaintiffs' demand to postpone the sale. On March 18, 2026, following the district court denying Plaintiffs' request for a temporary restraining order, the property was sold. A trustee's deed upon sale was then recorded on April 6, 2026. (Spann Decl., ¶ 14.)

Plaintiffs' own evidence admits that the purchase agreement was for less than the $4,189,336.30 payoff amount identified by Defendants. (Ghafoori Decl., ¶ 7.) Plaintiffs do not provide any competent evidence challenging the $4,189,336.30 payoff amount or any evidence demonstrating the purchase agreement contained a purchase price amount equal to or greater than the amount of the unpaid balance of all obligations of record secured by the property. For these reasons they have not shown the probable validity of their real property claim based on this alleged failure to postpone after receipt of a qualifying purchase agreement by a preponderance of the evidence.

Plaintiffs Failed to Show Probably Validity of a Real Property Claim Based on Right of Reinstatement

Plaintiffs also raise rights to reinstatement. (See Oppo. p. 9:10-17.) However, Defendants provide evidence showing that Plaintiffs were provided with payoff and reinstatement statements for the loan on March 3, 2026, but failed to take any action on either. (Spann Decl., ¶ 10, 12.) Plaintiffs' opposition provides no evidence on this issue, and Plaintiffs have thus failed to meet their burden demonstrating probable validity of a real property claim based on the right of reinstatement.

Defendants' Motion to Expunge the lis pendens is therefore GRANTED.

Attorney's Fees and Costs

The prevailing party on a motion to expunge is entitled to reasonable attorneys' fees and costs in making or opposing the motion unless the other party acted with substantial justification or other circumstances exist which would make the imposition of fees unjust. (Code Civ. Proc., § 405.38.)

Defendants seek $6,300.00 in fees and costs incurred in bringing this Motion and reviewing the Opposition thereto. (Spann Reply Decl., ¶ 4.) It does not appear Plaintiffs acted with substantial justification when they provided no evidence demonstrating that the purchase price complied with the requirements of section 2924f. The Court finds that hourly rate and the amount of hours spent are both reasonable and ORDERS Plaintiffs to pay to Defendants, fees in the amount of $6,300 within ten (10) days of the date of this Order.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:
https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNzEGafG.1
Meeting ID: 161 548 7764
Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: https://www.marin.courts.ca.gov